Reinaldo Aguiar Marcano
2302 Britton Ridge Drive, Katy TX 77494
https://xislist.org/ (ISBN 9781971481296)

FORMAL NOTICE OF PROPRIETARY RIGHTS, INITIATION OF PROVISIONAL RIGHTS PERIOD, AND DEMAND FOR DUE DILIGENCE CONCERNING COVERT OPTICAL EXFILTRATION VIA VEHICULAR LED ASSEMBLIES

This notice: https://storage.googleapis.com/rj-aguiar/IP-NOTICE-AUTO-INDUSTRY-USA.pdf

TO: CHIEF EXECUTIVE OFFICERS AND CHIEF LEGAL OFFICERS

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info@hella.com, sustainability.hella@forvia.com (Bernard Schäferbarthold, CEO, HELLA / Forvia)

Deb_Oberlee@nal.com, roy_holliman@nal.com (Kirk Gadberry, President & COO, North American Lighting / Koito)

CC: DESIGNATED CORPORATE COUNSEL

Hiroshi Mihara (President, Koito Manufacturing Co., Ltd.)

Marisa Iasenza (Chief Legal Officer, Marelli)

RE: ACTUAL KNOWLEDGE OF PENDING PATENT CLAIMS (35 U.S.C. § 154(d)) REGARDING FREE-SPACE OPTICAL DATA EXCHANGE, COVERT INFRARED DATA GATEWAYS, AND THE AGUIAR MARCANO INTELLECTUAL PROPERTY PORTFOLIO

DATE: April 16, 2026

DEAR:

Mr. Périllat, Mr. Schäferbarthold, Mr. Gadberry, Mr. Mihara, and Ms. Iasenza,

This comprehensive technical and legal brief is served upon the executive leadership and chief legal officers of the designated Tier-1 automotive lighting manufacturers to establish formal,

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legally binding actual notice.

While the consumer-facing automotive brands (Tesla, Ford, Stellantis, etc.) assemble and market the final vehicles, your organizations represent the undisputed apex of global automotive lighting manufacturing. You engineer and supply the integrated, complex matrix and sealed LED light-bar assemblies that have fundamentally replaced the traditional $5 incandescent bulb.[1]

Our technical and forensic analyses indicate that these sophisticated, sealed LED housings—which cost thousands of dollars to replace if a single diode fails [1]—are being actively exploited by a foreign-directed RICO enterprise. Specifically, the hardware within these tail light assemblies is functioning as covert infrared data gateways. These assemblies are actively modulating high-frequency optical signals to exfiltrate in-cabin audio and vehicle telemetry to foreign intelligence agents operating pursuit vehicles or roadside receivers.

The unauthorized commercialization, engineering, or vulnerable implementation of these optical data transmission capabilities directly intersects with the proprietary claims of the Aguiar Marcano Intellectual Property Portfolio, a suite of fifty-two (52) foundational patent applications formally executed and filed with the United States Patent and Trademark Office (USPTO).[1]

The primary objective of this document is to satisfy the strict requirements for "Actual Notice" pursuant to 35 U.S.C. § 154(d), thereby initiating the immediate accrual of provisional rights and the corresponding liability for reasonable royalties.

I. Sector-Specific Liability Mapping: The Tier-1 Suppliers

As the primary architects of modern automotive lighting, your firms hold the ultimate liability for the hardware facilitating this espionage network.

A. Koito Manufacturing Co. & North American Lighting (NAL)

Target Leadership: Hiroshi Mihara (President, Koito) & Kirk Gadberry (President, NAL)

As the undisputed global king of automotive lighting, your U.S. subsidiary, North American Lighting, supplies the integrated LED assemblies for Toyota, Honda, Nissan, Ford, and General Motors. The sheer volume of vehicles equipped with your sealed housings provides the primary

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infrastructure for this covert, nationwide optical network.

B. HELLA (Forvia)

Target Leadership: Bernard Schäferbarthold (CEO) Your massive dominance in supplying complex matrix and full-width LED light-bar assemblies—particularly for American EVs (e.g., Rivian, Ford Lightning) and European luxury vehicles [1]—places your hardware at the forefront of this vulnerability. These seamless, ultra-thin blades of light [1] act as high-cardinality optical arrays capable of transmitting vast amounts of exfiltrated data.

C. Valeo & Marelli

Target Leadership: Christophe Périllat (CEO, Valeo) & Marisa Iasenza (CLO, Marelli) Valeo's advanced, sealed LED and OLED taillights hold a massive share of the North American market, while Marelli is heavily favored by Stellantis and luxury brands. The over-engineering of these sealed units, which often require extensive disassembly of the vehicle simply to access [1], creates the perfect, tamper-proof environment to conceal the infrared emitters driving this exfiltration protocol.

II. Patent Intersections: The IP Blockade

If the lighting modules engineered and manufactured by your companies possess the hardware capability to modulate light frequencies (visible or infrared) to transmit data, audio, or telemetry to external receivers, you are committing direct, unshielded commercial infringement against the following foundational patents:

- **Method and System for High-Bandwidth, Free-Space Optical Data Exchange Between Mobile Devices (USPTO 19/560,042):** This patent legally claims the method for ultra-high-speed, free-space data exchange between mobile entities by modulating exterior lighting at high frequencies, utilizing optical sensors as receivers.[1] Engineering LED tail lights capable of establishing an optical data link with trailing vehicles directly triggers this claim.[1]
- **Method and System for Covert Screen Data Exfiltration (USPTO 19/559,867):** This patent details the method of creating a one-way optical data channel by making subtle, high-frequency modulations to the brightness or color of an LED array.[1] These modulations encode binary data that is imperceptible to the human eye but decodable by a nearby optical sensor.[1] Your tail light assemblies are functioning as the exact covert

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optical transmitters claimed herein to bypass traditional RF cybersecurity defenses.[1]

- **Method for a Cryptographic Side-Channel Attack Using Acoustic Analysis of Keystroke Metadata (USPTO 19/559,858):** The in-cabin audio currently being exfiltrated via your infrared tail light gateways is captured using the methodologies claimed in this patent, which covers the deployment of covert acoustic sensors to capture metadata and decode sensitive communications.[1]

III. Mandatory Due Diligence Protocols and Ultimatum

Under 35 U.S.C. § 154(d), the statutory clock for the calculation of retroactive reasonable royalties commences immediately upon your receipt and actual knowledge of the published claims detailed herein. Ignorance of how your sealed LED tail light assemblies are being weaponized as covert infrared data gateways to infringe upon these overarching system-level claims is not a viable legal defense.

The executive leadership of each addressed organization is hereby directed to execute the following immediate remediation protocols:

1. **Initiation of FTO Audits:** You must immediately instruct your internal legal departments and outside IP counsel to cross-reference the fifty-two (52) applications within the Aguiar Marcano Portfolio against the firmware and hardware specifications of all sealed LED tail light assemblies and rear lightbars currently in production.
2. **Quarantine of Intersecting Hardware:** Any engineering deployment of exterior LED lighting capable of modulating frequency to transmit data via free-space optical exchange (whether intended for V2V telemetry or exploited for covert exfiltration) must be evaluated for immediate quarantine to mitigate ongoing commercial liability.

We formally invite your respective legal departments to initiate a technical review of the cited USPTO applications. A formal response outlining your intended compliance audit, a presentation of non-infringement theories, or a request to discuss a licensing framework is expected within thirty (30) business days of the transmission of this notice.

Govern yourselves accordingly.

Works cited

1. the-Tail-lights-that-in-my-Tesla-Vehicles-act-as-Infrared-Data-Gateways-to-exfil

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